UPSC AND SPSC

CONSTITUTIONAL PURPOSE, EVOLUTION AND → UPSC, SPSC AND JOINT → ARTICLE 316 MEMBERSHIP, EXPERIENCE → ARTICLES 317-319 AND 322 → ARTICLE 320 FUNCTIONS: EXAMINATIONS → EXEMPTIONS, NON-CONSULTATION, ADDITIONAL FUNCTIONS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW · ○ SUBORDINATE EXTRA · ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

00

STAGE 00 CONSTITUTIONAL PURPOSE, EVOLUTION AND ARTICLES 315-323 MASTER MAP

CONSTITUTIONAL PURPOSE, EVOLUTION AND ARTICLES 315-323 MASTER MAP · ROOT QUESTION · HOW CAN RECRUITMENT REMAIN MERIT-BASED, REPRESENTATIVE AND INSULATED FROM · CHARTER ACT 1853 · MACAULAY COMMITTEE 1854 · FIRST PSC, 1 OCTOBER 1926 · GOVERNMENT OF INDIA ACT 1935 · CONSTITUTION, 26 JANUARY 1950.

ROOT QUESTION → How can recruitment remain merit-based, representative and insulated from patronage? → Charter Act 1853 → Macaulay Committee 1854 → first PSC, 1 October 1926 → Government of India Act 1935 → Constitution, 26 January 1950. → PART XIV, CHAPTER II

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can recruitment remain merit-based, representative and insulated from patronage?
- Charter Act 1853 → Macaulay Committee 1854 → first PSC, 1 October 1926
- Government of India Act 1935 → Constitution, 26 January 1950.

POWER / PROCEDURE

- PART XIV, CHAPTER II
- 315 institution
- 316 appointment/term
- 317 removal/suspension

CHECK / LIMIT

- 318 service/staff rules
- 319 post-office limits
- 320 functions/consultation
- 321 additional functions

FEDERAL / RIGHTS IMPACT

- 322 charged expenses
- 323 reports.
- DESIGN independent constitutional advice → lawful executive appointment → public accountability.
- LIMIT merit is not one test score; Articles 14, 16, reservation and suitability remain operative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public Service Commissions transformed competitive recruitment from a colonial administrative device into a federal institution constrained by equality and public accountability.

01

STAGE 01 UPSC, SPSC AND JOINT STATE PSC: CREATION, ASSISTANCE AND FEDERAL DISTINCTIONS

UPSC, SPSC AND JOINT STATE PSC · CREATION, ASSISTANCE AND FEDERAL DISTINCTIONS · UNION PUBLIC SERVICE COMMISSION · ARTICLE 315(1) · UNION INSTITUTION · MEMBERS APPOINTED BY PRESIDENT. · STATE PUBLIC SERVICE COMMISSION · ONE FOR EACH STATE, SUBJECT TO ARTICLE 315

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
UNION PUBLIC SERVICE COMMISSION	members appointed by Governor.	UPSC ASSISTANCE TO ONE STATE: ARTICLE 315(4)	TRAP constitutional source, creating instrument, appointing authority and service area differ.
Article 315(1) → Union institution → members appointed by President.	JOINT STATE PSC	Governor request + President approval + UPSC agreement.	
STATE PUBLIC SERVICE COMMISSION	Article 315(2) → resolutions by participating State legislatures	JOINT RECRUITMENT: ARTICLE 320(2)	
Article 315(1) → one for each State, subject to Article 315	Parliament provides by law → members appointed by President.	UPSC assists two or more States where special qualifications are required.	

CONSTITUTIONAL BASIS / ARTICLE

- UNION PUBLIC SERVICE COMMISSION
- Article 315(1) → Union institution → members appointed by President.
- STATE PUBLIC SERVICE COMMISSION
- Article 315(1) → one for each State, subject to Article 315

POWER / PROCEDURE

- members appointed by Governor.
- JOINT STATE PSC
- Article 315(2) → resolutions by participating State legislatures
- Parliament provides by law → members appointed by President.

CHECK / LIMIT

- UPSC ASSISTANCE TO ONE STATE: ARTICLE 315(4)
- Governor request + President approval + UPSC agreement.
- JOINT RECRUITMENT: ARTICLE 320(2)
- UPSC assists two or more States where special qualifications are required.

FEDERAL / RIGHTS IMPACT

- TRAP constitutional source, creating instrument, appointing authority and service area differ.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 315(4) permits UPSC assistance to a State by agreement, but neither creates a Joint State Commission nor abolishes the State's own Commission.

02

STAGE 02 ARTICLE 316 MEMBERSHIP, EXPERIENCE RULE, TENURE, RESIGNATION AND ACTING CHAIR

ARTICLE 316 MEMBERSHIP, EXPERIENCE RULE, TENURE, RESIGNATION AND ACTING · JOINT PSC · COMPOSITION NUMBER AND SERVICE CONDITIONS ARE REGULATED UNDER ARTICLE · AS NEARLY AS MAY BE, ONE-HALF OF MEMBERS MUST · TERM SIX YEARS FROM ENTERING OFFICE. · UPSC MEMBER · AGE CEILING 65 · SPSC OR JOINT PSC MEMBER

UPSC / Joint PSC → President → SPSC → Governor. → COMPOSITION number and service conditions are regulated under Article 318. → As nearly as may be, one-half of members must have held government office for ten → TERM six years from entering office.

CONSTITUTIONAL BASIS / ARTICLE

- UPSC / Joint PSC → President
- SPSC → Governor.
- COMPOSITION number and service conditions are regulated under Article 318.
- As nearly as may be, one-half of members must have held government office for ten years.

POWER / PROCEDURE

- TERM six years from entering office.
- UPSC member: age ceiling 65
- SPSC or Joint PSC member: age ceiling 62.
- UPSC / Joint PSC member → President

CHECK / LIMIT

- SPSC member → Governor.
- ACTING CHAIR: ARTICLE 316(1A)
- President for UPSC/Joint PSC
- Governor for SPSC.

FEDERAL / RIGHTS IMPACT

- TRAP appointment, resignation, acting appointment and removal do not use one authority.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 316 leaves Commission strength unfixed while requiring, as nearly as may be, half the members to possess ten years of government service.

03

STAGE 03 ARTICLES 317-319 AND 322: REMOVAL, SUSPENSION AND INDEPENDENCE SAFEGUARDS

ARTICLES 317-319 AND 322 · REMOVAL, SUSPENSION AND INDEPENDENCE SAFEGUARDS · MISBEHAVIOUR ROUTE · ARTICLE 317(1) · PRESIDENT REFERS TO SUPREME COURT · COURT INQUIRY AND REPORT · PRESIDENT MAY REMOVE AFTER CONSTITUTIONAL FINDING. · DIRECT PRESIDENTIAL GROUNDS

MISBEHAVIOUR ROUTE: ARTICLE 317(1)

President refers to Supreme Court → Court inquiry and report → President may remove after constitutional finding. → DIRECT PRESIDENTIAL GROUNDS: ARTICLE 317(3) insolvency

CONSTITUTIONAL BASIS / ARTICLE

- MISBEHAVIOUR ROUTE: ARTICLE 317(1)
- President refers to Supreme Court → Court inquiry and report
- President may remove after constitutional finding.
- DIRECT PRESIDENTIAL GROUNDS: ARTICLE 317(3) insolvency

POWER / PROCEDURE

- paid employment outside office
- infirmity of mind or body.
- DEEMED MISBEHAVIOUR: ARTICLE 317(4) interest in specified government contracts or benefits.
- SUSPENSION PENDING INQUIRY: ARTICLE 317(2)

CHECK / LIMIT

- President for UPSC/Joint PSC
- Governor for SPSC.
- ARTICLE 318
- President/Governor regulates member conditions and staff; disadvantage bar after appointment.

FEDERAL / RIGHTS IMPACT

- ARTICLE 319 + ARTICLE 322 post-office restrictions + expenses charged on Consolidated Fund.
- LIMIT strong tenure and finance protection coexist with executive appointment and staff dependence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Removal security without staff, finance, transparent appointments and operational integrity can still produce weak independence.

04

STAGE 04 ARTICLE 320 FUNCTIONS: EXAMINATIONS, RECRUITMENT METHODS AND PERSONNEL ADVICE

ARTICLE 320 FUNCTIONS · EXAMINATIONS, RECRUITMENT METHODS AND PERSONNEL ADVICE · ARTICLE 320(1) CONDUCT EXAMINATIONS FOR APPOINTMENTS TO UNION AND · ARTICLE 320(2) · UPSC ASSISTS TWO OR MORE STATES IN JOINT RECRUITMENT · ARTICLE 320(3) CONSULTATION METHODS OF RECRUITMENT · PRINCIPLES FOR APPOINTMENTS · PROMOTIONS AND TRANSFERS

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 320(1) conduct examinations for appointments to Union and State services.
- ARTICLE 320(2)
- UPSC assists two or more States in joint recruitment for specially qualified services.

POWER / PROCEDURE

- ARTICLE 320(3) CONSULTATION methods of recruitment → principles for appointments
- promotions and transfers → candidate suitability
- disciplinary matters → legal-cost claims → injury-pension claims.

CHECK / LIMIT

- DECISION CHAIN service rules + vacancy + notice → examination/selection → recommendation
- appointing government makes lawful decision.
- PSC advice is generally advisory

FEDERAL / RIGHTS IMPACT

- government owns posts and cadres consultation is not adjudication
- recommendation is not appointment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public Service Commission involvement can shape recruitment methods, service principles and candidate suitability, but these stages must remain analytically distinct when locating arbitrariness.

05

STAGE 05 EXEMPTIONS, NON-CONSULTATION, ADDITIONAL FUNCTIONS AND ARTICLE 323 ACCOUNTABILITY

EXEMPTIONS, NON-CONSULTATION, ADDITIONAL FUNCTIONS AND ARTICLE 323 ACCOUNTABILITY · ARTICLE 320(3) PROVISO · PRESIDENT/GOVERNOR MAY MAKE CONSULTATION-EXEMPTION REGULATIONS · REGULATIONS MUST BE LAID BEFORE PARLIAMENT/STATE LEGISLATURE. · ARTICLE 320(4) CONSULTATION IS NOT REQUIRED ON THE MANNER · STATE OF U.P. V. MANBODHAN LAL SRIVASTAVA (1957) CONSULTATION · ARTICLE 321 · PARLIAMENT/STATE LEGISLATURE MAY EXTEND FUNCTIONS TO LOCAL OR OTHER

ARTICLE 320(3) PROVISO → President/Governor may make consultation-exemption regulations → regulations must be laid before Parliament/State legislature. → ARTICLE 320(4) consultation is not required on the manner of Article 16(4) reservation or giving → State of U.P. v. Manbodhan Lal Srivastava (1957) consultation is directory; non-consultation alone does not

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 320(3) PROVISO
- President/Governor may make consultation-exemption regulations
- regulations must be laid before Parliament/State legislature.

POWER / PROCEDURE

- ARTICLE 320(4) consultation is not required on the manner of Article 16(4) reservation or giving effect to Article 335.
- State of U.P. v. Manbodhan Lal Srivastava (1957) consultation is directory; non-consultation alone does not invalidate action.
- ARTICLE 321

CHECK / LIMIT

- Parliament/State legislature may extend functions to local or other public institutions.
- ARTICLE 323 annual report → President/Governor → legislature memorandum explaining non-acceptance of advice.
- SYNTHESIS non-binding advice becomes constitutionally visible through reasoned legislative reporting.

FEDERAL / RIGHTS IMPACT

- ARTICLE 320(4) consultation is not required on the manner of Article 16(4) reservation or giving effect to Article 335.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 323 converts rejected advice from a private executive departure into a matter capable of legislative scrutiny.

06

STAGE 06 RECRUITMENT ECOSYSTEM, LATERAL ENTRY AND INSTITUTIONAL OWNERSHIP BOUNDARIES

RECRUITMENT ECOSYSTEM, LATERAL ENTRY AND INSTITUTIONAL OWNERSHIP BOUNDARIES · WHO OWNS WHAT? · POSTS, RECRUITMENT RULES, CADRE, RESERVATION AND APPOINTMENT. · EXAMINATION, SELECTION AND CONSULTATION ASSIGNED BY CONSTITUTION/RULES. · DEPARTMENTAL BODY · STATUTORY OR EXECUTIVE RECRUITMENT WITHIN ASSIGNED JURISDICTION. · SERVICE-DISPUTE ADJUDICATION AND LEGALITY REVIEW. · LATERAL ENTRY TEST IDENTIFY POST

WHO OWNS WHAT? → Government / DoPT → posts, recruitment rules, cadre, reservation and appointment. → UPSC / SPSC → examination, selection and consultation assigned by Constitution/rules. → SSC / departmental body → statutory or executive recruitment within assigned jurisdiction. → CAT / courts → service-dispute adjudication and legality review.

CONSTITUTIONAL BASIS / ARTICLE

- WHO OWNS WHAT?
- Government / DoPT → posts, recruitment rules, cadre, reservation and appointment.
- UPSC / SPSC → examination, selection and consultation assigned by Constitution/rules.

POWER / PROCEDURE

- SSC / departmental body → statutory or executive recruitment within assigned jurisdiction.
- CAT / courts → service-dispute adjudication and legality review.
- LATERAL ENTRY TEST identify post → recruitment rule → mode and level → consultation regulation

CHECK / LIMIT

- reservation/equality control → transparent selection → appointing authority.
- CURRENT CONTROL
- 15 March 2024 consultation-regulation amendment covers specified posts and methods.

FEDERAL / RIGHTS IMPACT

- It is not a universal constitutional category called lateral entry.
- UPSC is not the entire civil-service system and CAT is not a recruitment agency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lateral recruitment is a mode of filling identified posts; it is not a constitutional amendment and does not displace Articles 14, 16, 309 or the applicable reservation and recruitment rules.

07

STAGE 07 SELECTION CASE LAW AND EXAMINATION-INTEGRITY CONTROL

SELECTION CASE LAW AND EXAMINATION-INTEGRITY CONTROL · FAIRNESS AND REVIEW · ASHOK KUMAR YADAV (1985) · BIAS CONTROLS AND PROPORTIONATE INTERVIEW DESIGN. · K. MANJUSREE (2008) · NO UNDISCLOSED MINIMUM CRITERION AFTER PROCESS BEGINS. · TEJ PRAKASH PATHAK (2024) · STABLE, LAWFUL AND NON-ARBITRARY RECRUITMENT RULES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
FAIRNESS AND REVIEW	Tej Prakash Pathak (2024) → stable, lawful and non-arbitrary recruitment rules.	PUBLIC EXAMINATIONS ACT AND RULES, 2024 prevention → secure centres/CBT → incident reporting → investigation → penalty.	LIMIT criminal punishment cannot cure opaque rules, weak governance or inaccessible remedies.
Ashok Kumar Yadav (1985) → bias controls and proportionate interview design.	Shankarsan Dash (1991) → select-list entry gives no indefeasible appointment right.	INTEGRITY SYSTEM conflict disclosure + audit trail + cyber security + calibrated transparency	
K. Manjusree (2008) → no undisclosed minimum criterion after process begins.	M.V. Thimmaiah (2007) → courts do not become appellate selection boards.	prompt reasoned remedy.	

CONSTITUTIONAL BASIS / ARTICLE

- FAIRNESS AND REVIEW
- Ashok Kumar Yadav (1985) → bias controls and proportionate interview design.
- K. Manjusree (2008) → no undisclosed minimum criterion after process begins.

POWER / PROCEDURE

- Tej Prakash Pathak (2024) → stable, lawful and non-arbitrary recruitment rules.
- Shankarsan Dash (1991) → select-list entry gives no indefeasible appointment right.
- M.V. Thimmaiah (2007) → courts do not become appellate selection boards.

CHECK / LIMIT

- PUBLIC EXAMINATIONS ACT AND RULES, 2024 prevention → secure centres/CBT → incident reporting → investigation → penalty.
- INTEGRITY SYSTEM conflict disclosure + audit trail + cyber security + calibrated transparency
- prompt reasoned remedy.

FEDERAL / RIGHTS IMPACT

- LIMIT criminal punishment cannot cure opaque rules, weak governance or inaccessible remedies.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 315 to 323 create a differentiated federal commission system rather than one national recruitment authority for every public post.

08

STAGE 08 NEUTRALITY, CAPACITY, REFORM, TRAPS AND QUALIFIED ANSWER SYNTHESIS

NEUTRALITY, CAPACITY, REFORM, TRAPS AND QUALIFIED ANSWER SYNTHESIS · INDEPENDENCE TEST CREDIBLE APPOINTMENTS + SECURE TENURE + CHARGED · PROTECTED DATA/EXAMS + REASONED DECISIONS + LEGISLATIVE REPORTING + · REFORM TRANSPARENT CRITERIA · VACANCY PLANNING · CONFLICT/RECUSAL RULES · COMMON SECURITY STANDARDS · FASTER GRIEVANCE DISPOSAL

INDEPENDENCE TEST credible appointments + secure tenure + charged expenses + professional staff → protected data/exams + reasoned decisions + legislative reporting + judicial review. → REFORM transparent criteria → vacancy planning → conflict/recusal rules → common security standards → faster grievance disposal → SPSC capacity support without Union takeover.

CONSTITUTIONAL BASIS / ARTICLE

- INDEPENDENCE TEST credible appointments + secure tenure + charged expenses + professional staff
- protected data/exams + reasoned decisions + legislative reporting + judicial review.
- REFORM transparent criteria → vacancy planning → conflict/recusal rules
- common security standards → faster grievance disposal

POWER / PROCEDURE

- SPSC capacity support without Union takeover.
- PRELIMS FIREWALL
- Governor appoints SPSC but President removes
- age 65 versus 62

CHECK / LIMIT

- Joint PSC needs parliamentary law
- Article 320 advice is not binding
- Article 319 restrictions differ
- ECI, SSC, CAT and PSC are not interchangeable.

FEDERAL / RIGHTS IMPACT

- PYQ AUDIT no direct standalone 2018-2026 PSC PYQ verified; do not manufacture one.
- MAINS SPINE constitutional purpose → exact Article → function → safeguard
- practical deficit → case-year → accountable reform → neutrality-with-representation verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Commission must be strong enough to resist patronage but not so dominant that elected government loses responsibility for administration.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · PART A — UPSC (ART 315–323, PART XIV) · PART B — STATE PSC (SPSC) · PART C — JOINT SPSC (JSPSC) · SECURITY OF TENURE (REMOVED ONLY IN THE CONSTITUTIONAL MANNER). · SERVICE CONDITIONS CAN'T BE VARIED TO DISADVANTAGE AFTER APPOINTMENT. · EXPENSES (SALARIES/PENSIONS) CHARGED ON THE CONSOLIDATED FUND OF INDIA · NOT ELIGIBLE FOR ANY FURTHER CENTRAL/STATE EMPLOYMENT AFTER OFFICE.

OPTIONAL DOCTRINE / CASE

- PART A — UPSC (Art 315–323, Part XIV)
- PART B — STATE PSC (SPSC)
- PART C — JOINT SPSC (JSPSC)
- Security of tenure (removed only in the constitutional manner).

ADVANCED LIMIT

- Service conditions can't be varied to disadvantage after appointment.
- Expenses (salaries/pensions) charged on the Consolidated Fund of India (not voted).
- Chairman: NOT eligible for any further Central/state employment after office.
- Member: eligible ONLY to become UPSC chairman or an SPSC chairman — nothing else.

COMPARATIVE NUANCE

- No re-appointment to the same office (no second term).
- CAUTION: A.R. Kidwai case (1979): an ex-UPSC chairman appointed Governor was upheld — Governor is a
- CAUTION: Advisory & directory, NOT mandatory; the SC held that failure to consult the UPSC does not invalidate
- UPSC can also serve a state's needs — on the Governor's request with the President's approval .

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels